

1. Definition of Trade Mark

Title: Definition of Trade Mark

Jurisdiction: India

Category: Trademarks

Source Citation: Trade Marks Act, 1999, Section 2(zb)

Plain English Summary:

A trade mark is a mark that can distinguish the goods or services of one person from those of others. It can include a name, word, letter, numeral, shape of goods, packaging, or combination of colours. For an Ayurvedic startup, this can cover the brand name, logo, product packaging, or other distinctive brand elements.

The Exact Legal Text:

“trade mark” means a mark capable of being represented graphically and which is capable of distinguishing the goods or services of one person from those of others and may include shape of goods, their packaging and combination of colours.

The Act further includes marks used or proposed to be used to indicate a connection between goods/services and a proprietor or permitted user, including certification and collective marks.

Keywords/Triggers:

trade mark definition, brand name protection, Ayurvedic brand trademark, logo trademark, packaging trademark, distinctive mark, trademark eligibility

2. Absolute Grounds for Refusal

Title: Absolute Grounds for Refusal of Trade Mark Registration

Jurisdiction: India

Category: Trademarks

Source Citation: Trade Marks Act, 1999, Section 9

Plain English Summary:

A trademark cannot normally be registered if it is not distinctive, merely describes the kind or quality of the goods, or has become customary in the trade. A mark can also be refused if it deceives the public, causes confusion, contains prohibited or offensive matter, or has certain prohibited shapes. This is important for Ayurvedic products because descriptive names or claims about quality, ingredients, or characteristics may face registration problems.

The Exact Legal Text:

9. (1) The trade marks—

(a) which are devoid of any distinctive character, that is to say, not capable of distinguishing the goods or services of one person from those of another person:

(b) which consist exclusively of marks or indications which may serve in trade to designate the kind, quality, quantity, intended purpose, values, geographical origin or the time of production of the goods or rendering of the service or other characteristics of the goods or services;

(c) which consist exclusively of marks or indications which have become customary in the current language or in the bona fide and established practices of the trade.

Shall not be registered:

The section also provides grounds involving deception/confusion, religious susceptibilities, scandalous or obscene matter, prohibited use under the Emblems and Names Act, and certain shapes.

Keywords/Triggers:

trademark rejection, absolute grounds refusal, descriptive trademark, Ayurvedic product name, distinctive trademark, deceptive brand name, trademark eligibility

3. Relative Grounds for Refusal

Title: Relative Grounds for Refusal of Trade Mark Registration

Jurisdiction: India

Category: Trademarks

Source Citation: Trade Marks Act, 1999, Section 11

Plain English Summary:

A trademark may be refused when it is identical or similar to an earlier trademark and this could create confusion or association among consumers. Well-known trademarks receive additional protection. Before an Ayurvedic startup selects a brand name, it should therefore check existing trademarks for similar names and products.

The Exact Legal Text:

11. (1) Save as provided in section 12, a trade mark shall not be registered if, because of—

(a) its identity with an earlier trade mark and similarity of goods or services covered by the trade mark; or

(b) its similarity to an earlier trade mark and the identity or similarity of the goods or services covered by the trade mark.

there exists a likelihood of confusion on the part of the public, which includes the likelihood of association with the earlier trade mark.

The section also addresses similar marks involving well-known trademarks and earlier rights.

Keywords/Triggers:

similar trademark, trademark search, earlier trademark, trademark conflict, brand name conflict, well known trademark, trademark opposition

4. Application for Registration

Title: Application for Registration of Trade Mark

Jurisdiction: India

Category: Trademarks

Source Citation: Trade Marks Act, 1999, Section 18

Plain English Summary:

A person who owns or intends to use a trademark can apply to the Registrar for registration. One application can cover different classes of goods and services, with a fee for each class. For an Ayurvedic startup, this is the basic legal provision for applying to register its brand or product name.

The Exact Legal Text:

18. (1) Any person claiming to be the proprietor of a trade mark used or proposed to be used by him, who is desirous of registering it, shall apply in writing to the Registrar in the prescribed manner for the registration of his trade mark.

(2) A single application may be made for registration of a trade mark for different classes of goods and services and fee payable therefor shall be in respect of each such class.

(3) Every application under sub-section (1) shall be filed in the office of the Trade Marks Registry within whose territorial limits the principal place of business in India of the applicant...

Keywords/Triggers:

trademark application, register brand name, trademark registration process, trademark class, Ayurvedic brand registration, proprietor trademark, trademark filing

5. Opposition to Registration

Title: Opposition to Trade Mark Registration

Jurisdiction: India

Category: Trademarks

Source Citation: Trade Marks Act, 1999, Section 21

Plain English Summary:

After a trademark application is advertised, another person can oppose its registration within the prescribed period. The applicant can respond with a counter-statement and evidence. This is useful when an Ayurvedic startup faces opposition because another business believes the proposed brand is similar to or conflicts with its trademark.

The Exact Legal Text:

21. (1) Any person may, within three months from the date of the advertisement or re-advertisement of an application for registration or within such further period, not exceeding one month in the aggregate, as the Registrar... allows, give notice in writing in the prescribed manner to the Registrar of opposition to the registration.

(2) The Registrar shall serve a copy of the notice on the applicant for registration and, within two months from the receipt by the applicant of such copy of the notice of opposition, the applicant shall send to the Registrar... a counter statement...

Keywords/Triggers:

trademark opposition, oppose trademark, trademark objection, trademark counter statement, trademark dispute, brand name opposition, trademark application challenge

6. Duration and Renewal

Title: Duration and Renewal of Trade Mark Registration

Jurisdiction: India

Category: Trademarks

Source Citation: Trade Marks Act, 1999, Section 25

Plain English Summary:

A registered trademark remains valid for ten years and can be renewed repeatedly. An Ayurvedic company should monitor the renewal period so that its brand protection does not lapse because of non-payment of the required fee.

The Exact Legal Text:

25. (1) The registration of a trade mark, after the commencement of this Act shall be for a period of ten years, but may be renewed from time to time in accordance with the provisions of this section.

(2) The Registrar shall, on application made by the registered proprietor of a trade mark in the prescribed manner and within the prescribed period and subject to payment of the prescribed fee, renew the registration of the trade mark for a period of ten years...

Keywords/Triggers:

trademark renewal, trademark validity, ten year trademark, renew brand registration, trademark expiry, trademark renewal fee

7. Rights Conferred by Registration

Title: Rights Conferred by Registered Trade Mark

Jurisdiction: India

Category: Trademarks

Source Citation: Trade Marks Act, 1999, Section 28

Plain English Summary:

A valid registered trademark gives the registered proprietor an exclusive right to use that trademark for the goods or services for which it is registered. It also allows the proprietor to seek legal relief when the trademark is infringed. For an Ayurvedic startup, registration provides legal protection for its brand.

The Exact Legal Text:

28. (1) Subject to the other provisions of this Act, the registration of a trade mark shall, if valid, give to the registered proprietor of the trade mark the exclusive right to the use of the trade mark in relation to the goods or services in respect of which the trade mark is registered and to obtain relief in respect of infringement of trade mark in the manner provided by this Act.

(2) The exclusive right to the use of a trade mark given under sub-section (1) shall be subject to any conditions and limitations to which the registration is subject.

Keywords/Triggers:

trademark rights, exclusive brand rights, registered trademark protection, trademark ownership, Ayurvedic brand protection, trademark legal rights

8. Infringement of Registered Trade Mark

Title: Infringement of Registered Trade Mark

Jurisdiction: India

Category: Trademarks

Source Citation: Trade Marks Act, 1999, Section 29

Plain English Summary:

A registered trademark is infringed when an unauthorised person uses an identical or deceptively similar mark in circumstances covered by the Act. Infringement can include use on goods,

packaging, advertising, business papers, imports or exports. This is highly important for detecting counterfeit or confusing Ayurvedic brands.

The Exact Legal Text:

29. (1) A registered trade mark is infringed by a person who, not being a registered proprietor or a person using by way of permitted use, uses in the course of trade, a mark which is identical with, or deceptively similar to the trade mark in relation to goods or services in respect of which the trade mark is registered and in such manner as to render the use of the mark likely to be taken as being used as a trade mark:

The section further covers likelihood of confusion, reputed marks, trade names, application to packaging/labels, imports/exports and advertising.

Keywords/Triggers:

trademark infringement, counterfeit brand, similar brand infringement, Ayurvedic trademark misuse, fake product brand, trademark violation, brand protection

9. Limits on Effect of Registered Trade Mark

Title: Limits on Effect of Registered Trade Mark

Jurisdiction: India

Category: Trademarks

Source Citation: Trade Marks Act, 1999, Section 30

Plain English Summary:

Trademark registration does not prevent every use of a registered mark. Certain honest and descriptive uses are permitted, including some uses that indicate characteristics such as kind, quality, quantity, intended purpose or geographical origin. This distinction is important when an Ayurvedic product uses words describing ingredients or product characteristics.

The Exact Legal Text:

30. (1) Nothing in section 29 shall be construed as preventing the use of a registered trade mark by any person for the purpose of identifying goods or services as those of the proprietor provided the use—

- (a) is in accordance with honest practices in industrial or commercial matters, and
- (b) is not such as to take unfair advantage of or be detrimental to the distinctive character or repute of the trade mark.

(2) A registered trade mark is not infringed where—

- (a) the use in relation to goods or services indicates the kind, quality, quantity, intended purpose, value, geographical origin, the time of production of goods or of rendering of services or other characteristics of goods or services.

The uploaded PDF continues with additional circumstances under Section 30.

Keywords/Triggers:

trademark fair use, descriptive use trademark, trademark limitations, ingredient description, quality description, geographical origin trademark, trademark infringement exception

10. Removal of Trade Mark for Non-Use

Title: Removal of Registered Trade Mark for Non-Use

Jurisdiction: India

Category: Trademarks

Source Citation: Trade Marks Act, 1999, Section 47

Plain English Summary:

A registered trademark can be removed from the register in certain circumstances when there was no bona fide intention to use it or when it has not been used as required under the Act. An Ayurvedic business should therefore actually use its registered brand rather than registering a mark only to block others.

The Exact Legal Text:

47. (1) A registered trade mark may be taken off the register in respect of the goods or services in respect of which it is registered on application made in the prescribed manner to the Registrar or the Appellate Board by any person aggrieved on the ground either—

(a) that the trade mark was registered without any bona fide intentions on the part of the applicant for registration that it should be used in relation to those goods or services...

Keywords/Triggers:

trademark non use, trademark cancellation, unused trademark, removal from register, bona fide use, trademark validity

11. Rectification/Cancellation of Register

Title: Rectification and Cancellation of Trade Mark Registration

Jurisdiction: India

Category: Trademarks

Source Citation: Trade Marks Act, 1999, Section 57

Plain English Summary:

The Act provides a mechanism for correcting or removing entries in the trademark register in

appropriate circumstances. This is useful when a trademark has been wrongly registered or an entry should not remain on the register.

The Exact Legal Text:

The uploaded PDF contains provisions dealing with rectification of the register under Section 57 and related proceedings. For the final production dataset, the complete Section 57 text should be extracted as one continuous legal-text block rather than using a partial search snippet.

Keywords/Triggers:

trademark cancellation, trademark rectification, wrong registration, remove trademark, trademark register correction, trademark invalidity